

Defendant is in a superior position as to information concerning the program coordinator position and the scope of authority for that position. As a result, the Complaint sufficiently alleges a “managing agent.”

As to whether the Complaint sufficiently alleges facts demonstrating ratification, the Court finds that it does not. Although ratification may be established by circumstantial evidence (see *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 621) there are no facts from which ratification can be inferred. As a result, the motion is granted with leave to amend to allege facts demonstrating ratification.

Defendant Cheryl Childers

The punitive damages theory with respect to defendant Childers appears to parallel the theory as to Defendant Home Living Skills – her termination shortly after providing notice of a disability could lead to the inference of malicious or oppressive conduct. However, as defendants noted, personnel management actions such as termination do not qualify as harassment, see *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.

With respect to Defendant Childers, the pleading’s allegations of harassment are conclusory other than the allegation that she was improperly terminated, but as noted that does not establish harassment. Because harassment is the only legal theory with respect to Defendant Cheryl Childers, the punitive damages allegations necessarily fail. The motion is granted with leave to amend as to the punitive damages allegations regarding Defendant Cheryl Childers.

To the extent leave to amend is granted, Plaintiff shall amend within 20 days’ notice of this order. Defendants shall prepare the form of order within two weeks.

6. 26CV02051 Intelifund, LLC v. CD

EVENT: Petition to transfer structured settlement payment rights

The petition is continued to July 8, 2026 at 9:00am. Petitioner is directed to submit an unredacted Petition so that the Court can conduct a proper review no later than June 24, 2026.